

25VECV01231 25VECV01231

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25VECV01231 Berson v City of LA

[TENTATIVE] ORDER: Plaintiff Barbara Berson's Motion fir Trial Preference is GRANTED. The court will set the case for trial within 120 days (11/25/2026). The parties are to work on a discovery schedule and defendant shall advise the court whether it needs a hearing date for an MSJ, which the court can accommodate. The court suggests scheduling a shortened expert designation schedule as the court has limited ability to continue the trial if discovery is not completed. Counsel should be aware that the court strictly follows CCP section 36 re when trial shall commence and no continuance except for physical disability of a party or a party's attorney, or upon a showing of good cause stated in the record. Any continuance shall be for no more than 15 days and no more than one continuance for physical disability may be granted to any party. 120 days here is 11/25/2026.

Introduction

Plaintiff Barbara Person (Plaintiff) moves for a trial preference.

Defendant City of Los Angeles (Defendant) opposes.

Discussion

Plaintiff moves for a trial preference under Code of Civil Procedure section 36(a), and argues that she is 88 years old, has a substantial interest in the case as she is the plaintiff, and her health is such that a trial preference is necessary. Plaintiff

Plaintiff argues that due to the incident in this case, she underwent emergency surgery lasting over four hours on the same evening: right shoulder closed reduction, open reduction internal fixation of the right greater tuberosity with a plate and screws, right rotator cuff repair for a full-thickness supraspinatus tear discovered intraoperatively, and open reduction internal fixation of the left wrist with a volar locking plate, under general anesthesia with multiple peripheral nerve blocks. (Suarez Decl., par. 13.) Since then, she has endured more than thirty-four sessions of physical therapy, a suspected rotator cuff retear requiring periodic injections for pain management, a new diagnosis of Type I diabetes requiring insulin four times daily, and the compounding burden of over a dozen serious pre-existing medical conditions. (Suarez Decl., pars. 17, 20, 23.) Her pre-existing conditions include hypertension, hyperlipidemia, hypothyroidism, osteoporosis, and chronic back pain managed by a spinal cord stimulator placed approximately one week before the incident. She had previously undergone surgeries on her back, bilateral hips, and bilateral knees. (Suarez Decl., para. 14.) She was also managing anxiety disorder, insomnia, gastroesophageal reflux disease, and sigmoid diverticulitis, each requiring ongoing medication. (Id.)

In the alternative, Plaintiff requests that the Court exercise its discretion to grant trial preference pursuant to Code of Civil Procedure sections 36, subdivisions (d) and/or (e).

"Notwithstanding any other provision of law, the court may in its discretion grant a motion for preference that is supported by a showing that satisfies the court that the interests of justice will be served by granting this preference." (Code Civ. Proc. § 36(e).)

This case was filed on 3/5/2025. Defendant City of LA answered the complaint on 4/25/2025. This is a trip and fall case on a sidewalk. This case is relatively simple. Defendants obtain the medical records, take the deposition of the plaintiff, and decide on a medical exam. Defendant has already had 16 months to do these things. This case was originally set for a Trial Setting Conference on 8/5/2025. It was continued to 12/8/2025. It was continued again to 3/13/2026 at the request of City of LA. The court indicated that it expected the City to have most of its discovery completed by 7/9/2026. The TSC was continued to 7/28/2026.

Defendant City of LA states that setting a trial in 120 days would violate its substantive and due process rights, yet it fails to explain how it has not already completed discovery in the 16 months it has been in the case. The court ordinarily should have scheduled the trial date by 14 months after the complaint was filed. Instead, it has already been 16 months since defendant answered. Defendant has had more than enough time to satisfy its need for discovery. There will be no prejudice in setting this case for trial by Nov. 25, 2026 as defendant will have had 21 months to complete discovery and schedule an MSJ.

The court has discretion to grant the trial setting priority under CCP section 36(e). Here, the court finds that the interests of justice are will be served by scheduling this trial on a priority basis for an 88 year old plaintiff with multiple, serious, systemic medical conditions, a claim that she is substantially impaired by her injuries, and particularly where there is NO PREJUDICE TO DEFENDANT.

IT IS SO ORDERED, CLERK TO GIVE NOTICE.